IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, PUNE

Criminal Complaint Case No. 1452 of 2025

(Fictional sample case for demonstration)

M/s Shree Ganesh Traders, through its proprietor Shri Anil Deshmukh ... Complainant

versus

Shri Rakesh Patil, resident of Kothrud, Pune ... Accused

COMPLAINT UNDER SECTION 138 READ WITH SECTION 142 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

1. The Complainant is a wholesale dealer of building hardware. Between August and November 2024 the Complainant supplied goods worth Rs. 4,80,000 to the Accused on credit, under invoices No. SGT/112 to SGT/131. The deliveries were received by the Accused's site staff, who signed the delivery challans.

2. Towards part payment of this outstanding amount, the Accused issued cheque No. 004512 dated 10.01.2025 for Rs. 4,50,000, drawn on Sahyadri Co-operative Bank, Kothrud Branch, in favour of the Complainant.

3. The Complainant presented the cheque through its account at Bank of Maharashtra, Shivajinagar Branch, Pune on 15.01.2025. The cheque was returned unpaid on 17.01.2025 with the remark "Funds Insufficient". The Complainant received the return memo on 20.01.2025.

4. On 05.02.2025 the Complainant sent a legal notice by registered post to the Accused at the address printed on the cheque, demanding payment within 15 days. Postal tracking shows the notice was delivered on 08.02.2025. The Accused neither paid the amount nor replied within 15 days, that is by 23.02.2025.

5. This complaint is filed on 10.03.2025, within one month of the cause of action. This Court has jurisdiction because the Complainant's bank branch is in Pune.

DEFENCE OF THE ACCUSED (from the reply and plea recorded on 14.05.2025)

6. The Accused admits his signature on the cheque but states that it was a blank signed cheque given as "security" in 2023, when the business relationship began, and not towards any debt.

7. The Accused states that part of the goods supplied in October 2024 were defective and were returned, so the amount claimed is inflated. He has not produced any return challan or written complaint about defects.

8. The Accused states that he did not receive the legal notice, although he admits that the address on the cheque is his residential address.

EVIDENCE ON RECORD

- Invoices SGT/112 to SGT/131 and the ledger account of the Accused
- Delivery challans signed by the Accused's site staff
- Original cheque and bank return memo dated 17.01.2025
- Copy of legal notice, postal receipt and tracking report

RELIEF SOUGHT

The Complainant prays that the Accused be summoned, tried and punished under Section 138 of the Negotiable Instruments Act, 1881, and directed to pay compensation under Section 357 CrPC / Section 395 BNSS, along with interim compensation under Section 143A.